

GZ: 2023-0.227.168 dated March 23, 2023 (Case Number: DSB-D777.026)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent has not been pseudonymized here, as processing the content of the decision in such a way that would make it impossible or significantly more difficult to identify the respondent would only have been possible through a substantial removal of the comprehensibility of the content of the decision. The confidentiality right (§ 1 DSG) and confidentiality interest of the respondent, a legal entity explicitly entrusted with statutory tasks in the context of the facts, is countered by the statutory mandate according to § 23 para. 2 DSG, whereby this is a decision of fundamental importance for the public, as some legal questions have been definitively decided for the first time here. The decision was therefore included in the decision documentation of the Data Protection Authority due to the predominance of the public interest in publication.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Dr. Erich A*** (complainant) dated February 10, 2022 (received on February 14, 2022) against ELGA GmbH (respondent) regarding the alleged violation of the right to information as follows:

1. The complaint is upheld, and it is determined that the respondent has violated the complainant's right to information by failing to respond to his related request.
2. The respondent is ordered to comply with its obligation to respond to the complainant within a period of four weeks, otherwise enforcement will be initiated against it, in accordance with Art. 12 para. 3 in conjunction with Art. 15 para. 1 GDPR.

Legal basis: Art. 12 para. 1, para. 2, para. 3 and para. 4, Art. 15 para. 1, Art. 23 para. 1 lit. e, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 58 para. 2 lit. c, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), Official Journal No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 2 Z 14, 17 para. 1 and para. 2, 24c para. 1, 24e para. 1 Z 1 and 27 para. 17 of the Health Telematics Act 2012 (GTelG 2012), Federal Law Gazette I No. 111/2012 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In the initiating submission dated February 10, 2022 (received on February 14, 2022), the complainant alleged a violation of the right to information on the grounds that the respondent did not (timely) respond to his related request dated January 3, 2022.
2. The Data Protection Authority, due to a number of identical complaints, requested the respondent to submit a statement in a letter dated September 28, 2022.
3. In a submission dated November 15, 2022, the respondent stated as follows: Initially, it is pointed out that the respondent lacks the characteristic of responsibility in connection with the electronic vaccination passport (hereinafter: "e-vaccination passport"), as this is neither legally provided nor does the respondent have any other factual decision-making powers regarding the purposes and means of processing. Rather, this decision is made by the competent Federal Minister (Note: Federal Minister for Social Affairs, Health, Care, and Consumer Protection), who develops the legal basis for the processing activity "e-vaccination passport," submits the resolution to the National Council, prescribes the development in the relevant committees – especially in those of the respondent – and predominantly finances the e-vaccination passport. As a result, this means "without the Health Minister, no e-vaccination passport." The fact that there is even a discussion about the characteristic of responsibility in this case is solely due to the opening clause of Art. 4 Z 7 GDPR. However, the question arises in this context as to whether an opening clause also allows for a "contra facta" assignment or is only applicable in cases of doubt. The relevant guidelines of the European Data Protection Board suggest that completely contradictory factual situations should not be "twisted" by

legal definitions. Furthermore, the European Data Protection Board states that if the responsible party is explicitly determined by law, this is decisive for determining responsibility. However, this requires that the legislator designates the entity as responsible that has the opportunity for “genuine” control. The fact that the respondent is not capable of this is evidenced, for example, by its lack of (specific) access rights in § 24f para. 4 GTelG 2012, which would not even allow the respondent to exercise the affected rights in question (reference to the decision of the Data Protection Authority dated September 2, 2022, GZ: 2022-0.347.251), by the respondent's obligation to follow instructions from its owners, and by the factual granting of numerous...

Orders and directives to the respondent regarding processing activities in connection with the e-vaccination passport as well as the continuous adaptation of the legal framework by the responsible Federal Minister. As already stated, the respondent does not have budgetary authority. Furthermore, the responsible Federal Minister has publicly clarified that the initiation of a procedure pursuant to Art. 36 GDPR – at that time in connection with the now-repealed COVID-19 Vaccination Obligation Act – does not fall within the responsibilities of the management of the respondent, although the initiation of such a procedure is the responsibility of the data controller. The respondent also has no genuine interest in this processing activity. The interest is limited to the fee-based handling of orders issued by its owners or other public authorities. The Data Protection Authority also stated in its decision of October 14, 2022, that the respondent is not the data controller for the processing activity "e-vaccination passport" and consequently there is no passive legitimacy. Furthermore, reference is made to the already issued statement of the respondent regarding the ministerial draft concerning the federal law amending the Epidemic Act of 1950 and the COVID-19 Measures Act, in which it was explained in detail that the "pilot phase" of the central vaccination register had already expired and from that point on, the responsible Federal Minister would be the data controller. Aside from that, there is also a lack of passive legitimacy for the exercise of data subject rights. According to § 24e para. 1 no. 1 GTelG 2012, affected persons have the right to information exclusively in writing to the "ELGA Ombudsman" or electronically via the access portal. Even if the respondent were to be the data controller, the additional involvement of the respondent for all data subject rights according to Chapter III GDPR – particularly through § 24e para. 1 no. 1 GTelG 2012 – would be excluded, as the relevant parliamentary materials would also demonstrate.

4. With the decision of January 10, 2023, the Data Protection Authority granted the complainant the opportunity to respond to the statement of the respondent.

5. In the context of the granted opportunity to respond, the complainant did not submit any further statement. A corresponding forwarding report is attached to the file, and there is no error message from an email server.

B. Subject of the Complaint

Based on the complaint submission, the subject of the complaint arises from the question of whether the respondent has violated the complainant's right to information by not responding to his related request.

C. Findings of Facts

1. The respondent is a limited liability company registered under FN 338778 d with its registered office at 1200 Vienna, Treustraße 35-43. The purpose of the company is to provide services in the public interest in the area of public services in the field of e-health for the introduction and implementation of the electronic health record. The owners (shareholders) are the Federal Government (represented by the Federal Minister of Health), the states, and the umbrella organization of social insurance carriers. Assessment of Evidence: The findings are based on an official inquiry of the commercial register for FN 338778 d as well as the website www.elga.gv.at, last queried by the Data Protection Authority on March 22, 2023.

2. The complainant sent a postal letter to the respondent – addressed to the address mentioned in point C.1. – on January 3, 2022, which was partially excerpted – as far as relevant to the proceedings – as follows:

[Note from the editor: Request for information in the original presented as a graphic file.]

Subject: Request for information pursuant to Art. 15 GDPR

Dear Sir or Madam!

I refer to my rights under the GDPR, in particular Art. 15 GDPR.

Please confirm whether you process personal data concerning me.

I request information about all personal data that you have stored about me.

Additionally, I request the following information:

- the purposes of processing and the categories of personal data that are processed and, if the personal data were not collected from me, all information about the origin of this data.
- all contractual or legal bases on which this data is used.
- the recipients or categories of recipients to whom the personal data have been disclosed or transmitted or will still be disclosed, as well as the guarantees under Art. 46 GDPR, if personal data are transmitted or have been transmitted to a third country or international organizations.
- the existence of a right to rectification and deletion of personal data concerning me or to restriction of processing by you or a right to object to this processing.
- the existence of a right to lodge a complaint with the competent supervisory authority.
- if links with other databases (including external ones) are made, then the request for information also applies to this data; this also applies if such links are planned. Furthermore, the results of the links must also be detailed.
- the planned duration for which the personal data will be stored, or, if that is not possible, the criteria for determining that duration.

Assessment of Evidence:

The findings made are based on the credible initial submission of the complainant, in the course of which the aforementioned letter was submitted in copy, among other things.

3. The letter mentioned in point C.2. has been received by the respondent (by post). The respondent did not provide any substantive information or other responses to the complainant until the conclusion of the proceedings.

Assessment of Evidence: The findings made are based on the credible assertions of the complainant, which were not disputed or otherwise called into question by the respondent at any time. In particular, the respondent did not dispute the receipt of the letter at any time.

D. From a legal perspective, it follows:

D.1. Regarding point 1

D.1.1. Legal Bases

According to Art. 15 para. 1 GDPR, the data subject has the right to request confirmation from the controller as to whether personal data concerning them is being processed; if that is the case, they have the right to obtain information about this personal data and the information mentioned in para. 2 of the same article.

This information must be provided in a precise, transparent, understandable, and easily accessible form, using clear and plain language, according to Art. 12 para. 1 GDPR ("Requirement of Accuracy and Understandability"). The controller facilitates the exercise of the data subject's rights according to para. 2 of the same article ("Facilitation Requirement").

According to para. 3 of the same article, the request must be responded to – in principle – without delay, and in any case within one month. If the controller does not act upon the request of the data subject, they are obliged, according to para. 4 of the same article, to inform the data subject without delay, and at the latest within one month of receiving the request, of the reasons for this and of the possibility to lodge a complaint with a supervisory authority or to seek a judicial remedy ("Response and Acceleration Requirement").

According to § 24e para. 1 GTelG 2012, citizens have the right to obtain information electronically via the access portal or in writing from the ELGA Ombudsman regarding the data concerning them stored in the central vaccination register and log data (Art. 15 in conjunction with Art. 23 para. 1 lit. e GDPR) and to print the data stored in the central vaccination register themselves or to have it printed by the ELGA Ombudsman, whereby § 17 para. 2 and 4 of the same article applies.

According to § 17 para. 1 and para. 2 GTelG 2012 (as well as § 10 para. 1 and para. 3 Z 1 ELGA-VO 2015), the ELGA Ombudsmen are to be established and operated by the Federal Minister responsible for health (by regulation). The task of an ELGA Ombudsman is particularly to inform, advise, and support affected persons in matters related to ELGA, especially in enforcing participant rights and in matters of data protection. In this sense, the ELGA Ombudsman is to provide all necessary information upon request within two weeks to determine the responsible party for processing their data in ELGA (Art. 4 Z 7 GDPR). The responsibilities of the data protection authority remain unaffected by this provision.

D.1.2. Regarding the alleged violation of the right to information

It should be noted at the outset that the letter mentioned in point C.2. is undoubtedly a request for information in the sense of Art. 15 para. 1 in conjunction with Art. 12 para. 3 GDPR, which has undoubtedly entered the sphere of influence of the respondent – consequently, it has been received by them (cf. regarding the application of the “Receipt Theory,” for example, the decision of the DSB dated February 22, 2019, GZ: DSB-D124.098/0002-DSB/2019, available in the RIS).

As can be seen from the findings, the respondent did not provide any substantive information or any other response – in particular, no information about the reasons for non-compliance – but simply remained inactive.

The respondent justified that they were neither legally obliged nor – legally or factually – competent to provide information due to their lack of responsibility in connection with processing in the electronic vaccination pass (hereinafter: e-vaccination pass). Furthermore, § 24e para. 1 GTelG 2012 restricts the modalities for exercising the right to information about the data stored in the central vaccination register to electronic inquiries via the access portal or written claims to the “ELGA Ombudsman,” whereby the latter is not to be equated with the respondent – but, as can be seen from § 17 of the same article, is to be assigned to the responsible Federal Minister.

Regarding the alleged lack of data protection responsibility, the respondent overlooks that according to the provisions of the GDPR, there is a distinction between the “information obligor” – that is the entity to which the request for information is directed.

addressed to – and the actual responsible party – according to Art. 4 No. 7 of the cited law, it is necessary to distinguish between the entity that decides on the purposes and means of processing. This distinction arises from the fact that, according to established case law and unanimous literature, if no personal data is currently being processed concerning the applicant, a “negative response” must be provided (see, for example, the decision of the Federal Administrative Court (BVG) dated June 24, 2021, GZ: W274 2240807-1, as well as Bäcker in Kühling/Buchner, General Data Protection Regulation (2017) Art. 15 Rz. 7; regarding the previous legal situation, see the decision of the Administrative Court (VwGH) dated May 27, 2009, GZ: 2007/05/0052, which stated that § 26 of the Data Protection Act 2000 granted a right to a negative response if there was reason to believe that a data controller was processing data concerning the affected individual). In this context, the “particular intensity” of the relationship between the entity obliged to provide information and the affected person is not relevant (see, for example, the decision of the Data Protection Authority (DSB) dated October 1, 2019, GZ: DSB-D123.625/0006-DSB/2019). Conversely, the fact of actual data processing is not a prerequisite for being entitled to information.

Consequently, a distinction must also be made between the (essential) obligation to respond and the obligation to provide substantive information. While the latter can only exist for those (natural or legal) persons or other entities that have the essential decision-making authority regarding the purposes and means of processing the (currently available) data, the obligation under Art. 12 para. 3 GDPR to respond is triggered as soon as the request is received. Should the “information provider” conclude, particularly after reviewing the existing data, that providing information is either not legally required or practically impossible, they must inform the applicant without delay about the reasons for this and about the possibility of lodging a complaint with a supervisory authority or seeking judicial remedy (see regarding the previous – and fundamentally comparable – legal situation the decision of the Data Protection Commission (DSK) dated July 10, 2009, GZ: K121.495/0013-DSK/2009, which stated that even in the case of an legally invalid request, there was generally an obligation to respond).

The Federal Administrative Court also assumes that there is an obligation to respond, even if the recipient of a request for information is generally not considered to be responsible (decision dated October 20, 2015, GZ W214 2105746-1). The (substantive) right to information is intended to enable the affected person to assert union law guaranteed subjective rights – such as rights to rectification and erasure, but also the right to lodge a complaint due to unlawful processing (see the decision of the VwGH dated May 27, 2009, ZI. 2007/05/0052, with references, as well as the judgment of the Court of Justice of the European Union (CJEU) dated May 7, 2009, C-553/07, Rijkeboer).

The obligation to respond and inform is, according to the intention of the EU legislative authority, constructed in a way that serves as a (preliminary) starting point for the assertion of rights of the affected individuals (specifically: Art. 15 GDPR). If the entity to which the request is directed remains (completely) inactive (Art. 12 para. 3 GDPR) or does not inform the applicant about the reasons for this (Art. 12 para. 4 GDPR), it is simply impossible for the applicant to direct their request to the correct entity (responsible party) or to improve it, and thus ultimately to effectively assert their rights as an affected individual (see regarding the right to a written rejection of a request for information under the previous – and purpose-wise comparable – legal situation the decision of the DSK dated April 10, 2013, GZ: K121.924/0006-DSK/2013).

The circumstance cited by the respondent that the legislator refers in § 24e para. 1 GTelG 2012 to the specifically established "ELGA Ombudsman" for the exercise of rights of affected individuals does not change the already triggered obligation of the respondent to react or, in the case of inaction, to inform the applicant upon receipt of the applicant's request.

As a result, the respondent has violated their obligation under Art. 12 para. 3 and para. 4 GDPR through their non-response and thereby infringed upon the applicant's right to information according to Art. 15 para. 1 of the cited law.

It was therefore decided accordingly.

D.2. Regarding Point 2

As already elaborated in Point D.1., the respondent has violated the applicant's right to information due to a lack of response and was consequently ordered to respond appropriately to the applicant's request.

The order for action is based on Art. 58 para. 2 lit. c GDPR, which states that the supervisory authority may order compliance with requests from the affected person to exercise their rights under this regulation.

A response period of four weeks appears to be reasonable in this context.

It was therefore decided accordingly.